SECURITIES AND EXCHANGE COMMISSION

17 CFR Parts 200, 230, 274, and 275

[Release Nos. 33-11325; 34-101540; IA-6767; IC-35377]

Conforming Amendments to Commission Rules and Forms

AGENCY: Securities and Exchange Commission.

ACTION: Final rule.

SUMMARY: The Securities and Exchange Commission ("Commission") is adopting amendments to correct certain errors in various rules and forms under the Securities Act of 1933, the Securities Exchange Act of 1934, the Investment Company Act of 1940, and the Investment Advisers Act of 1940. The Commission is also amending a rule that displays control numbers assigned to information collection requirements by the Office of Management and Budget pursuant to the Paperwork Reduction Act.

DATES: *Effective date*: This rule is effective [INSERT DATE OF PUBLICATION IN THE FEDERAL REGISTER].

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SUPPLEMENTARY INFORMATION: The Commission is amending the following rules and forms:

Commission Reference		CFR Citation (17 CFR)
Securities Act of 1933 ("Securities Act")[1]	Rule 482[2]	§ 230.482
Securities Act and Investment Company Act of 1940 ("Act" or "Investment Company Act")[3]	Form N-1A[4]	§§ 239.15A and 274.11A
	Form N-2[5]	§§ 239.14 and 274.11a-1
Securities Exchange Act of 1934 ("Exchange Act")[6] and Investment Company Act	Form N-CSR[7]	§§ 249.331 and 274.128
Investment Company Act	Form N-MFP[8]	§ 274.201
Investment Advisers Act of 1940 ("Investment Advisers Act")[9]	Rule 204-2[10]	§ 275.204-2
	OMB control numbers[11]	§ 200.800

1 15 U.S.C. 77a *et seq*. The Securities Act is available at https://www.govinfo.gov/content/pkg/COMPS-1884/pdf/COMPS-1884.pdf.

2 Rule 482 is available at https://www.ecfr.gov/current/title-17/chapter-II/part-230#230.482

3 15 U.S.C. 80a-1 *et seq*. Unless otherwise noted, all references to statutory sections are to the Investment Company Act, and all references to rules under the Investment Company Act are to title 17, part 270 of the Code of Federal Regulations [17 CFR Part 270]. The Investment Company Act is available at https://www.govinfo.gov/content/pkg/COMPS-1879/pdf/COMPS-1879.pdf

4 A reference copy of Form N-1A is available at https://www.sec.gov/files/form-n-1a.pdf.

5 A reference copy of Form N-2 is available at https://www.sec.gov/files/formn-2.pdf.

6 15 U.S.C. 78a *et seq*. The Exchange Act is available at https://www.govinfo.gov/content/pkg/COMPS-1885/pdf/COMPS-1885.pdf

7 A reference copy of Form N-CSR is available at https://www.sec.gov/files/formn-csr.pdf.

8 A reference copy of Form N-MFP is available at https://www.sec.gov/files/formn-mfp.pdf

9 15 U.S.C. 80b-1 *et seq*. The Investment Advisers Act is available at https://www.govinfo.gov/content/pkg/COMPS-1878/pdf/COMPS-1878.pdf

10 Rule 204-2 is available at https://www.ecfr.gov/current/title-17/chapter-II/part-275/section-275.204-2

11 17 CFR 200.800 is available at https://www.ecfr.gov/current/title-17/chapter-II/part-200/subpart-N

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I. DISCUSSION

The Commission is adopting amendments to correct errors in certain Commission rules and forms. Specifically, the amendments correct errors in the formula for calculating yield data reported on Form N-MFP, which requires money market funds to report portfolio and other information to the Commission each month. The amendments also make conforming changes to the risk disclosure statement in rule 482, which requires certain information to be included in mutual fund advertisements and sales literature. The amendments also conform certain provisions of Form N-1A and Form N-2, forms used by open-end management investment companies ("open-end funds") and closed-end funds, respectively, to register under the Investment Company Act and to offer their shares under the Securities Act. These amendments reflect recent rule changes requiring open-end funds to transmit more concise annual and semi-annual reports to shareholders. Further, the amendments correct outdated cross-references and redesignate the numbering of certain paragraphs within Form N-CSR, a reporting form used by

funds to file shareholder reports under the Investment Company Act and the Exchange Act. The amendments also correct an erroneous cross-reference in rule 204-2, which prescribes recordkeeping requirements for investment advisers. Finally, the amendments insert inadvertently omitted Office of Management and Budget ("OMB") control numbers in rule 17 CFR 200.800, which is a rule that displays control numbers OMB has assigned to existing information collection requirements pursuant to the Paperwork Reduction Act.

Although the amendments are effective immediately, to the extent that registrants need additional time to conform to the amendments, they may take up to 90 days after the effective date to comply.[12] Given the nature of the amendments, a 90-day compliance period gives registrants adequate time to review these amendments and, if necessary, update their practices to reflect the corrections.

A. Form N-MFP

The Commission is adopting amendments to correct errors in Form N-MFP. Money market funds use Form N-MFP to report portfolio and other information to the Commission each month. Among the items required by Form N-MFP is the reporting of a money market fund's 7-day annualized gross and net yields. The form requires money market funds to report 7-day gross yield at the series level and 7-day net yield at the class level.[13] These standardized metrics give investors the ability to view the yield information of a money market fund over a recent time period, allowing investors to make better informed decisions and, in the aggregate, provide the

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[12] *See also infra* section I.C (stating that funds may include the updates to Item 10(a)(1)(iii) of Form N-1A in their next annual prospectus update following the adoption of the amendments to Form N-1A).

[13] *See* Items A.19 and B.8 of Form N-MFP.

Commission with useful data for identifying and monitoring trends in the money market fund sector.

In 2023, the Commission adopted a rulemaking that changed the frequency at which funds are required to report the 7-day yield information in their monthly reports on Form N-MFP to require 7-day gross and net yield data for each business day of the month (instead of only the 7 days ended on the last day of the month).[14]

In making this frequency-related change, the phrase "business days" was erroneously inserted into the yield calculation formula in a way that inadvertently altered the calculation period from 7 calendar days to 7 business days. A 7-business day period is internally inconsistent with the remainder of the yield calculation formula, which uses a scaling factor intended to annualize yields calculated over 7 calendar days. If used with a 7-business day period, it would result in the reporting of inflated annual yields on Form N-MFP.[15] Based on a review of a sample of recent Form N-MFP filings, Commission staff has not observed any evidence of an increase in reported yield figures relative to yields reported in prior periods, suggesting that money market funds' yield calculations do not reflect the error.[16] In addition, in amending Form N-MFP in 2023, the phrase "immediately preceding" was inadvertently inserted into the yield calculation

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[14] *See* Money Market Fund Reforms; Form PF Reporting Requirements for Large Liquidity Fund Advisers; Technical Amendments to Form N-CSR and Form N-1A, Investment Company Act Release No. 34959 (July 12, 2023) [88 FR 51404 (Aug. 3, 2023)] ("Money Market Fund Reform Adopting Release"), available at https://www.federalregister.gov/documents/2023/08/03/2023-15124/money-market-fund-reforms-form-pf-reporting-requirements-for-large-liquidity-fund-advisers-technical.

[15] The yield calculation formula in Items A.19 and B.8 (by reference to Item 26(a)(1) of Form N-1A) includes a scaling factor of 365/7, which operates to annualize yields calculated over a period of 7 calendar days. Due to the inclusion of weekends and holidays, however, 7 business days span a longer calendar period than 7 calendar days. Accordingly, yields calculated over 7 business days but annualized over 7 calendar days would result in inflated annual yields. *See infra* footnote 45.

[16] *See infra* footnote 45 and accompanying text.

formula, such that the reporting day would not be included in the calculation. The amendments correct these errors, ensuring that Form N-MFP continues to reflect the longstanding method money market funds have used to calculate and report yield figures (measured over seven calendar days) to the Commission in Form N-MFP and in other contexts, including prospectuses, advertisements, and sales literature.[17]

B. Rule 482(b)(4)

We are amending rule 482 to correct outdated cross-references and conform the risk statements that money market funds must include in their advertisements and sales literature to the risk statements that money market funds must include in their prospectuses.[18] Rule 482 applies to advertisements or other sales materials with respect to securities of an investment company registered under the Investment Company Act that is selling or proposing to sell its securities pursuant to a registration statement that has been filed under the Investment Company Act.[19] This rule describes the information that is required to be included in an advertisement, including a disclosure statement that must be used on money market fund advertisements.[20]

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[17] *See* Item 26(a) of Form N-1A (requiring money market funds to base yield calculations on the 7 days ended on the date of the most recent balance sheet included in the registration statement); Item 24(a) of Form N-4 (at 17 CFR 239.17b and 274.11c) (requiring a prospectus for an account or sub-account that holds itself out as a money market account or sub-account to be calculated based on the 7 days ended on the date of the most recent balance sheet of the registrant included in the registration statement); paragraph (e)(1) of 17 CFR 230.482 (requiring that any quotation of a money market fund's yield in an advertisement be based on the methods of computation prescribed in Form N-1A or Form N-4); paragraph (b)(1)(ii) of 17 CFR 270.34b-1 (requiring a money market fund's sales literature that includes any quotation of yield or similar quotations purporting to demonstrate the income earned or distributions made by the fund to be accompanied by a quotation of current yield based on the computation method prescribed in Form N-1A or Form N-4).

[18] *See* amended rule 482(b)(4). 17 CFR 270.34b-1 (rule 34b-1) cross references paragraph (b)(4) of rule 482, so the amendments will update the risk statements that money market funds must include in sales literature under rule 34b-1 as well. For purposes of this release, we use the term "advertisement" to include both rule 482 advertisements and rule 34b-1 sales literature, unless otherwise specified.

[19] *See* rule 482(a).

[20] *See* rule 482(b).

In the Money Market Fund Reform Adopting Release, the Commission amended the risk statements that money market funds must include in their prospectuses to align with the changes to money market fund regulations adopted in that release (*e.g.*, the removal of provisions allowing temporary suspensions of redemptions and changes to the liquidity fee framework). However, rule 482 was not included in the amendments and the statements that rule 482 currently requires are inconsistent with the recently amended regulatory framework for money market funds.[21] Further, the risk statements that money market funds were required to include in prospectuses and advertisements have otherwise always been identical and the risk statements should not differ based on whether an investor is reviewing a prospectus or an advertisement.[22]

As a result, rule 482 includes outdated references to concepts that have been removed or significantly modified in underlying money market fund regulations (*e.g.*, allowing temporary suspensions of redemptions). The amendments to rule 482 would correct this error, make certain other conforming edits to further align the language of the risk statements with the risk

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21 *See* Item 4(b)(1)(ii) of Form N-1A.

22 *See* Revisions to Rules Regulating Money Market Funds, Investment Company Act Release No. 18005 (Feb. 20, 1991) [56 FR 8113 (Feb. 27, 1991)], at text accompanying n.88, available at https://archives.federalregister.gov/issue_slice/1991/2/27/8112-8130.pdf#page=2; New Disclosure Option for Open-End Management Investment Companies, Investment Company Act Release No. 23065 (Mar. 13, 1998) [63 FR 13968 (Mar. 23, 1998)], at n.72 and accompanying text, available at https://www.govinfo.gov/content/pkg/FR-1998-03-23/pdf/98-7071.pdf; Registration Form Used by Open-End Management Investment Companies, Investment Company Act Release No. 23064 (Mar. 13, 1998) [63 FR 13916 (Mar. 23, 1998)], at paragraph accompanying n.41, available at https://www.govinfo.gov/content/pkg/FR-1998-03-23/pdf/98-7070.pdf; Money Market Fund Reform; Amendments to Form PF, Investment Company Act Release No. 31166 (July 23, 2014) [79 FR 47736 (Aug. 14, 2024)], at section III.E.1.a., available at https://www.federalregister.gov/documents/2014/08/14/2014-17747/money-market-fund-reform-amendments-to-form-pf.

statements that money market funds must include in their prospectuses, and correct inaccurate cross references to money market fund rules.[23]

C. Form N-1A

We are amending a provision of Form N-1A to correct a cross reference, reflecting changes made in the Tailored Shareholder Reports Adopting Release.[24] Specifically, we are amending Item 10(a)(1)(iii) of Form N-1A. This item requires open-end funds to include prospectus disclosure stating that a discussion regarding the basis for the board of directors approving any advisory contract of the fund is available in the fund's annual or semi-annual report to shareholders, as applicable.[25] In the Tailored Shareholder Reports Adopting Release, however, the Commission adopted amendments requiring discussion regarding the basis for the board's approval of the advisory contract to be included on Form N-CSR rather than in the annual or semi-annual report.[26] We are accordingly amending Item 10(a)(1)(iii) to reference that this disclosure now appears in the fund's reports on Form N-CSR.[27] Because this change simply

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23 For example, the amendments correct errors in cross references to the definitions of government money market fund and retail money market fund located in 17 CFR 270.2a-7 (rule 2a-7), as well as cross references to the location of liquidity fee provisions in that rule.

24 *See* Tailored Shareholder Reports for Mutual Funds and Exchange-Traded Funds; Fee Information in Investment Company Advertisements, Investment Company Act Release No. 34731 (Oct. 26, 2022) [87 FR 72758 (Nov. 25, 2022)] ("Tailored Shareholder Reports Adopting Release"), available at https://www.federalregister.gov/documents/2022/11/25/2022-23756/tailored-shareholder-reports-for-mutual-funds-and-exchange-traded-funds-fee-information-in.

25 *See* Item 10(a)(1)(iii) of Form N-1A ("Include a statement, adjacent to the disclosure required by paragraph (a)(1)(ii) of this Item, that a discussion regarding the basis for the board of directors approving any investment advisory contract of the Fund is available in the Fund's annual or semi-annual report to shareholders, as applicable, and providing the period covered by the relevant annual or semi-annual report.").

26 *See* Form N-CSR Item 11 (Statement Regarding Basis for Approval of Investment Advisory Contract).

27 As amended, Item 10(a)(1)(iii) will read: "Include a statement, adjacent to the disclosure required by paragraph (a)(1)(ii) of this Item, that a discussion regarding the basis for the board of directors approving any investment advisory contract of the Fund is available in the Fund's reports filed on Form N-CSR, and providing the period covered by the most recent Form N-CSR report that includes this discussion."

updates a cross reference, funds may include the updated language in their next annual prospectus update following the adoption of the amendments to Form N-1A and we anticipate funds would update this disclosure at that time. In the interim period before funds make this update, an investor who wants to review the discussion regarding the basis for the board's approval of the advisory contract would look in the fund's shareholder report (which is referenced in the current prospectus disclosure requirement).[28] While this discussion will no longer appear in the fund's shareholder report, the report will include a link to additional information about the fund, which includes the discussion regarding the basis for the board's approval of the advisory contract.

D. Form N-2

We are amending Instruction 8.a to Item 24 of Form N-2 to correct a cross-reference to a provision of Form N-CSR that became outdated when the Commission adopted amendments to Form N-CSR in the Tailored Shareholder Reports Adopting Release. Instruction 8.a refers to Item 7 of Form N-CSR ("Disclosure of Proxy Voting Policies and Procedures for Closed-End Management Investment Companies"), which was redesignated as Item 12 (but not otherwise changed) in the Tailored Shareholder Reports Adopting Release.[29] We are therefore amending the reference in Item 7 in Instruction 8.a to refer instead to Item 12.

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[28] *See* Item 27A(b)(4) of Form N-1A (shareholder report cover page must include a website address where additional information about the fund, as required under rule 30e-1 under the Investment Company Act, is available); rule 30e-1(b)(2) under the Investment Company Act (content requirements for additional information that an open-end fund must make available on a website, including the discussion regarding the basis for the board's approval of the advisory contract).

[29] *See* Tailored Shareholder Reports Adopting Release at amendatory instruction 17.g.

E. Form N-CSR

We are amending Items 2, 16, and 19 of Form N-CSR to correct outdated cross-references, remove unnecessary instructions, and redesignate the numbering of certain paragraphs. In the Recovery of Erroneously Awarded Compensation Adopting Release, the Commission added a new Item 18 ("Recovery of Erroneously Awarded Compensation") to Form N-CSR and redesignated then-current Item 18 ("Exhibits") as Item 19.[30] References in Item 2 of Form N-CSR, however, erroneously still refer to Item 18.[31] We are therefore amending Item 2 to refer to Item 19 instead of Item 18.

In the Recovery of Erroneously Awarded Compensation Adopting Release, the Commission also added new paragraph (a)(2) to newly designated Item 19 ("Exhibits") and redesignated paragraph (a)(2) of newly redesignated Item 19 as paragraph (a)(3). Subsequent paragraphs were not renumbered, however, resulting in two paragraphs designated (a)(3). The amendments would correct this error by redesignating existing paragraphs (a)(3) and (a)(4) of newly redesignated Item 19 as paragraphs (a)(4) and (a)(5). We are also correcting the title for the instructions to Item 19, which currently erroneously references Item 13. In addition, we are removing the instruction to paragraph (b) of Item 16 and the instruction to paragraph (a)(3) of Item 19 on Form N-CSR.[32] These instructions were included in Form N-CSR pursuant to the

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30 Listing Standards for Recovery of Erroneously Awarded Compensation, Investment Company Act Release No. 34732 (Oct. 26, 2022) [87 FR 73076 (Nov. 28, 2022)] ("Recovery of Erroneously Awarded Compensation Adopting Release"), available at https://www.federalregister.gov/documents/2022/11/28/2022-23757/listing-standards-for-recovery-of-erroneously-awarded-compensation

31 These references appear in paragraphs (c) and (f) of Item 2.

32 *See* instruction to paragraph (b) of Item 16 of Form N-CSR ("Until the date that the registrant has filed its first report on Form N-PORT (17 CFR 270.150), the registrant's disclosures required by this Item are limited to any change in the registrant's internal control over financial reporting that occurred during the registrant's last fiscal quarter that has materially affected, or is reasonably likely to materially affect, the